

**BEFORE THE
GOVERNING BOARD OF THE
GROSSMONT UNION HIGH SCHOOL DISTRICT**

In the Matter of the Reduction in Force of:

**CERTIFICATED TEACHERS OF THE GROSSMONT UNION HIGH
SCHOOL DISTRICT,**

Respondents.

OAH No. 2025040008

PROPOSED DECISION

Mary Agnes Matyszewski, Administrative Law Judge, Office of Administrative Hearings, State of California, heard this matter in El Cajon, California, on April 21, 2025.

Jonathan Pearl, Attorney at Law, Dannis Woliver Kelley, represented the Grossmont Union High School District (district).

Fern Steiner, Attorney at Law, Fern Steiner Law, APC, represented 17 respondents.

Nora Weisz, respondent, represented herself.

There was no appearance by Jennifer Rodriguez-Ramirez and Shelby Schlaht.

Oral and documentary evidence was received. The record was closed and the matter was submitted for decision on April 23, 2025, after the parties uploaded additional documents introduced at hearing.

FACTUAL FINDINGS

Jurisdictional Matters

1. On February 27, 2025, the Governing Board (board) of the district adopted Resolution Number 2025-28, reducing particular kinds of certificated services and directing the Superintendent or designee to give appropriate notice to the certificated employees whose positions would be affected by the reduction.¹ The resolution called for the reduction or discontinuation of 49.2 full-time equivalent (FTE) positions. The resolution identified the particular kinds of service and FTE(s) that were being discontinued and reduced.

2. The decision to reduce or discontinue a particular kind of service is a matter reserved to the district's discretion and is not subject to second-guessing in this proceeding. (*Rutherford v. Board of Trustees of Bellflower Unified School District* (1976) 64 Cal.App.3d 167.) School districts have the discretion to determine particular kinds of services that will be eliminated, even though a service continues to be performed or provided in a different manner by the district. (*Hildebrandt v. St. Helena Unified School Dist.* (2009) 172 Cal.App.4th 334, 343.) A school district's decision to reduce a particular kind of service must not be fraudulent, arbitrary or capricious. (*San Jose Teachers Association v. Allen* (1983) 144 Cal. App. 3d 627, 637.)

¹ An earlier version of this resolution, that did not have Home Economics as a position subject to reduction, was introduced. There was no evidence that it was ever presented to the board, nor did the board vote on it. As such, it is not controlling and its contents are irrelevant.

3. On February 27, 2025, the board also adopted Resolution Number 2025-30 establishing tie-breaking criteria for resolving ties in seniority between employees who first rendered paid service to the district on the same date. This resolution contained six criteria to use to break any ties.

4. On March 12, 2025, Bobbi Burkett, Ed.D., sent notices to certificated staff advising their services would not be required for the 2025-2026 school year. The reasons for that decision were set forth in Resolution Number 2025-28 which she attached. The certificated staff were given until March 19, 2025, to request a hearing. Dr. Burkett advised that the failure to do so waived the right to a hearing. Thereafter, Dr. Burkett served a Statement of Reduction in Force and other documents on the certificated staff who requested a hearing by submitting Notices of Participation.

5. Two represented respondents, Ashley Jeffries and Melissa Korn-Heller, did not file Notices of Participation. Ms. Jeffries was served with the March 12, 2025, documents and "refused to sign" acknowledging receipt of those documents. Ms. Korn-Heller signed the March 12, 2025, acknowledgement and requested a hearing, but did not file a Notice of Participation. Education Code section 44949, subdivision (b), states in part: "If an employee fails to request a hearing on or before the date specified, his or her failure to do so shall constitute his or her waiver of his or her right to a hearing." These two respondents did not appear, no argument about them participating was made, and the district objected to their participation. That objection was sustained.

6. All prehearing jurisdictional requirements were met.

Evidence Received at Hearing

7. Dr. Burkett, the district's Assistant Superintendent of Human Resources; Milena Aubrey, Ed.D., Director of Human Resources; and respondents Caryn Ipapo-Glass, Angela Ramsey, and Nora Weisz, testified in this proceeding. Several documents were received in evidence. The findings reached herein are based on that evidence.

8. The district serves 16,000 students, grades 9 through 12, and ages 18 to 22, through 17 school sites. It has approximately 1,185 certificated employees (as noted on the district's seniority list).

9. The Positions/FTEs identified in Resolution Number 2025-28 were Assistant Principal/Vice Principal (10.0), English Teacher (8.0), French Teacher (1.0), Home Economics Teacher (1.0), Library Media Specialist (9.0), Math Teacher (2.0), Physical Education (PE) Teacher (2.0), Principal-Special Ed Academy (1.0), Program Specialist (2.0), Psychologist (4.0), Social Science Teacher (2.0), Spanish Teacher (2.2), Special Education Teacher – Mild/Moderate (4.0), and Theatre Teacher (1.0).

10. Dr. Burkett explained that the district's "vision for its future" as it "moves forward serving the needs of its students" and its \$2.4 million budget shortfall were primary considerations behind the district's layoff decision. Neither Dr. Burkett nor Dr. Aubrey explained or defined the district's "vision." No evidence of what that vision entailed was introduced nor was there any evidence the "vision" was improper.

11. Respondents asserted that, assuming an average salary for certificated employees, the proposed reduction of 49.2 FTEs was more than twice the projected \$2.4 million deficit. Dr. Burkett testified the reduction was also based on the district's "vision."

12. Dr. Burkett testified that the decision to dismiss certificated employees was based solely on the welfare of the district and its students as that term is defined in the Education Code. She explained that positively assured attrition was taken into account, and the district will still be able to meet the state's minimum staffing requirements after the layoff.

13. After the executive leadership team identified the certificated employees subject to layoff, Dr. Aubrey reviewed the seniority list to determine if any of those individuals were credentialed and competent to "bump" a less senior employee and she applied the tie-breaking criteria when required.

14. A senior employee whose position is discontinued has the right to transfer to a continuing position in which he or she is certificated and competent to fill. In doing so, the senior employee is entitled to displace or "bump" a junior employee who is filling that position. (Ed. Code, § 44955; *Lacy v. Richmond Unified School District* (1975) 13 Cal.3d 469, 473-474.) Several bumps occurred as was detailed in the documents.

15. The district had to use the tie-breaking criteria to make decisions regarding home economics, biology, principal/vice principal, English, and PE positions.

16. Dr. Aubrey explained the letters of reassignment given to administrators and how she then determined if any of them could bump into other positions.

17. There was no evidence that the bumping performed was inaccurate or the tie-breaking criteria had been applied incorrectly.

18. Dr. Aubrey described the credentialing changes that occurred effective January 1, 2022. Individuals with a PE credential issued before January 1, 2022, have

the ability to teach dance as part of the PE curriculum. Individuals with PE credentials issued after that date do not have that dance specialization included in the credential and need a specialized credential to teach dance. Similarly, individuals with an English credential issued before January 1, 2022, can teach theatre and drama. Individuals with English credentials issued after that date do not have that specialization and a specific credential is required to teach theatre.

19. Dr. Aubrey testified about the “pool” of unassigned teachers who were issued their credentials before January 1, 2022, who have more seniority than respondents, giving them the ability to bump less senior respondents. Among those unassigned teachers are PE teachers who can bump respondents.

20. Dr. Aubrey explained that the principals at each school create the master schedule for that site. They are the ones making the decision whether a certain course, such as theatre, will be offered at their school.

21. Dr. Aubrey also described the psychology internship programs in place at the district allowing individuals to obtain required hours for credentialing and satisfy other field work requirements.

Dance / PE Issue

22. Caryn Ipapo-Glass teaches dance at Grossmont High School. She has a preliminary single subject credential in dance, ELAS,² and a GELAP³ in PE.

23. Ms. Ipapo-Glass's "overarching question/concern" is that she was not hired as a PE teacher. She has decades of training as a dance teacher. The job for which she applied listed the position as a dance teacher. It was a highly sought after position. It was never made known to her during her interview or hiring process that she was being categorized as a PE teacher.

24. Nothing on any of her contractual documents identify her as a PE teacher. All her documents only identify her position as a "dance" position.

25. Ms. Ipapo-Glass has never taught PE, has no desire to do so, has no access to the available PE funds, does not uphold PE standards for grading her students and, but for this process, had no idea she was considered a PE employee. She

² As stated on the Commission on Teacher Credentialing (CTC) website, individuals with an English Learner Authorization and a preliminary single subject credential will receive an ELAS authorization.

³ As stated on the CTC website, the General Education Limited Assignment Teaching Permit (GELAP) may be issued at the request of an employing school district, county office of education, charter school or state agency to fill a staffing vacancy or need. A GELAP is issued for a one-year period and can be reissued in any one subject twice if the holder completes the renewal requirements and the employing agency requests the permit.

was not hired as a PE teacher, she accepted a dance position, and is now being laid off as a PE teacher.

26. Ms. Ipapo-Glass also disputes it is in the best interest of the students' welfare to terminate the dance program at Grossmont High School, specifically for the at-risk and English as a second language students. Her program has the highest enrollment in the district with 250 students. Her position requires a vast knowledge of production, stage dance competition, and choreography. It is much more than the program offered in PE as part of the dance portion of that course. Given all that her dance program entails, a PE teacher with a credential issued before June 1, 2022, could not perform Ms. Ipapo-Glass's job.

27. Ms. Ipapo-Glass asserted that the layoff feels arbitrary. It "effectively eradicates a robust program at the school that is a cornerstone."

28. On cross-examination, Ms. Ipapo-Glass acknowledged there is no PE or dance teacher being retained who has less seniority than her. However, she did not understand why the "nuanced specificity" she has to teach dance versus it being part of a pre-2022 PE credential is not being considered when determining seniority. She does not understand why the district would want to replace her position with someone less qualified to teach dance.

29. Ms. Ipapo-Glass would prefer the district be "more upfront" in its decision-making. If it no longer wants dance at Grossmont High School in the way it currently operates, she would prefer that it say so. If the district does not want the quality of the program that currently exists, it should say so and "stand up behind it."

30. Ms. Ipapo-Glass testified that laying her off effectively ends a highly successful program.

Newcomer Students' Issue

31. Angela Ramsey began her testimony by thanking the district representatives for being present, acknowledging this difficult process, noting that she understands the quantitative data used to make these decisions, but urging that if the district were "ever in the situation again, to look at the qualitative data."

32. Ms. Ramsey has a preliminary single subject teaching credential in English, and an Emergency Cross-Cultural, Language and Academic Development permit (EM CLAD). She has her EM CLAD, not because she did not take the required classes, but because her classes were obtained out of state and did not transfer. She has a master's degree in English as a Secondary Language (ESL) from Louisiana State University. She has "three times the amount of credentials as anyone to teach ESL."

33. Ms. Ramsey explained that in order to get her CLAD in California, she was required to take coursework and have the CLAD added to her Arizona teaching credential. Arizona required she serve two full years as a teacher of record, which she will accomplish in June 2025. Once that happens, she can pay a fee and request her Arizona CLAD be transferred to California.

34. Ms. Ramsey's husband has served in the Marine Corps for 19 years, which led to them moving around a lot, and is why she has credentials in other states. She explained how difficult it has been with all these "moving parts" to obtain her credentials in the different states where she has lived.

35. Ms. Ramsey grew up in an immigrant community, so she went to school specifically to teach the immigrant population. She knows "first-hand the challenges" immigrant children face. Her primary goal is to support this newcomer population, which is a growing population in the district.

36. Ms. Ramsey teaches at Santana High School. In the first semester this school year, 45 more newcomers enrolled at the school than the district projected. As a result, she gave up her prep period to teach these unexpected students.

37. Ms. Ramsey is piloting a class for newcomers for the district that she is co-teaching. She came up with this program three years ago when she was a substitute teacher for the district. She is not paid for creating this program nor gets credit for it. The program has been so successful that the district approved her and her co-teacher to continue co-piloting this program in the newcomer classes.

38. Given recent funding cuts, the district "lost so much money" for these newcomer programs that she and her colleagues now refer to the programs as "newcomer light," but they have still found ways to make the program work.

39. Ms. Ramsey ensures that her students' social and emotional needs are met "in real time" every day in her classroom, in addition to the academic teaching she provides students.

40. Ms. Ramsey understood that her testimony cannot change the quantitative documents on which the district is relying, but asked "in the future, please, please think of the intangibles, think of the experience you are letting go away." She explained that by laying off qualified teachers who specialize in teaching newcomer/immigrant students, the district is losing valuable resources. While people with similar credentials can be assigned to the classroom, the district is losing someone, like herself, who went to school to specifically teach this demographic.

Theatre Issue

41. Nora Weisz has a preliminary single subject credential in theatre, activity supervisor, and a "Cir" CLAD. She teaches theatre, and "two years ago took over a program that had been decimated by COVID."

42. To the extent the district asserts there is no interest or need for the theatre program, Ms. Weisz disagrees. Her school site is a Title I school and her theatre classes are the only access students have to theatre and the arts. It is not that the students are uninterested, they have just never had any experience with theatre.

43. By laying her off and cutting her program, the students will never get exposure to the theatre or the arts. Many parents tell her that her program is the only thing that keeps the students enrolled at school. Her program motivates them.

44. Ms. Weisz has many students in her classes who are on IEPs or have other issues. The theatre classes keep them coming to school, which in turn keeps them attending their other classes, and gives them something to look forward to each day at school.

Evaluation

45. Ms. Ipapo-Glass is being bumped by a more senior PE teacher with a credential issued before 2022. That credential authorizes the senior employee to teach dance. Although no evidence refuted Ms. Ipapo-Glass testimony that her program is highly successful and robust, and that her knowledge and experience far outweigh what will most likely be offered by the senior PE teacher who bumps her, the Education Code is seniority-based and requires districts not to lay off employees who have more seniority and are competent and credentialed to teach the course.

46. Similarly, no evidence refuted Ms. Ramsey's testimony that her training and experience teaching newcomer students is far superior to any senior employee who will bump her. While this may be true, the Education Code is seniority-based.

47. Alternatively, Education Code section 44955, subdivision (d), allows a district to deviate from seniority if (1) the district demonstrates a specific need or (2) to comply with constitutional requirements related to equal protection of the laws. The process of deviating from seniority is called "skipping" and a district's proposed skip is generally set forth in the resolution, although not required to be. (*Bledsoe v. Biggs Unified School District* (2008) 170 Cal.App.4th 127, 135) Junior employees may be given retention priority if they possess special training and experience that their more senior counterparts lack. (*Alexander v. Board of Trustees* (1983) 139 Cal.App.3d 567, 571; *Moreland Teachers Association v. Kurze* (1980) 109 Cal.App.3d 648, 655.)

48. No evidence was presented that the district chose to skip dance or the newcomer program. The district's decision to lay off Ms. Ipapo-Glass and Ms. Ramsey was permissible under the Education Code.

49. While Ms. Weisz's testimony was sincere, and making theatre and the arts accessible to students is praiseworthy, the district has discretion to reduce or discontinue a particular kind of service or decide the service shall be offered in a different way, as it did here. The district's decision to lay off Ms. Weisz was permissible under the Education Code.

50. No employee with less seniority than any respondent is being retained to perform services respondents are certificated and competent to render.

LEGAL CONCLUSIONS

Jurisdiction

1. Jurisdiction for this proceeding exists pursuant to Education Code sections 44949 and 44955, and all notices and other requirements of those sections were provided as required. The district has the burden of proof by a preponderance of the evidence in this matter to show that its decision to reduce or discontinue services complied with the Education Code.

Applicable Case Law

2. A district may reduce services within the meaning of section 44955, subdivision (b), "either by determining that a certain type of service to students shall not, thereafter, be performed at all by anyone, or it may 'reduce services' by determining that proffered services shall be reduced in extent because fewer employees are made available to deal with the pupils involved." (*Rutherford v. Board of Trustees* (1976) 64 Cal.App.3d 167, 178-179.)

3. A senior employee whose position is discontinued has the right to transfer to a continuing position in which he or she is certificated and competent to fill. In doing so, the senior employee is entitled to displace or "bump" a junior employee who is filling that position. (Ed. Code, § 44955; *Lacy v. Richmond Unified School District* (1975) 13 Cal.3d 469, 473-474.) No evidence was introduced that the district improperly applied its bumping criteria.

4. Administrators serve at the pleasure of the appointing authority. (*Hentschke v. Sink* (1973) 34 Cal.App.3d 19, 22-23.) But, if they can meet certification and competence standards, their seniority may allow them to bump into teaching

positions of junior employees. Administrators first hired as teachers in their districts maintain their original seniority dates. (Ed. Code, § 44893.) For employees hired initially as administrators on or after July 1, 1983, however, their administrative time does not count toward seniority, except for site administrators who can earn up to three years' seniority. (Ed. Code, § 44956.5.)

Disposition

5. A preponderance of the evidence sustained the district's statement of reduction in force served on respondents.

6. The district identified the certificated employees providing the particular kinds of services that the board directed be reduced or discontinued. Because of the reduction of those particular kinds of services, cause exists pursuant to Education Code section 44955 to give notice to respondents that their services will not be required for the 2025-2026 school year. The cause relates solely to the welfare of the schools and the pupils thereof within the meaning of Education Code sections 44949 and 44955.

7. The services being reduced are particular kinds of services the Education Code allows the board to reduce or eliminate.

8. Cause exists to affirm the layoff notices issued to the respondents identified below whose services are proposed for reduction or discontinuance per Resolution Number 2025-28.

RECOMMENDATION

It is recommended that before May 15, 2025, the Governing Board give notice to the respondents listed below that their employment will be terminated at the close

of the current school year and their services in those positions will not be needed for the 2025-2026 school year:

Mary Kathleen Chestnut

Darryl Cooke

Kimberly De La Mora

Tomi Margarita Felix Chavez

Elaine Flores-Smith

Tatiana Harvey

Lance Heinemann

Melissa Korn-Heller

Caryn Ipapo-Glass

Ashley Jeffries

Nicholas Kurutz

Molly Lindsay

Monica Magdaleno

Diana Maldonado

Savannah Martin

Angela Ramsey

Emilia Rivera

Jennifer Rodriguez-Ramirez

Shelby Schlaht

Eesha Sharma

Nora Weisz

DATE: April 28, 2025


Mary Agnes Matyszewski (Apr 28, 2025 13:20 PDT)

MARY AGNES MATYSZEWSKI

Administrative Law Judge

Office of Administrative Hearings